

EXCEPTION TO FAIR OPPORTUNITY
IN ACCORDANCE WITH FEDERAL ACQUISITION REGULATION
(FAR) 16.505 - BRAND NAME
WireScreen Full Intelligence Platform
273FCC26F0034

1. Identification of the agency and the contracting activity.

This justification was prepared in accordance with FAR 16.505 by the Federal Communications Commission (FCC), Headquarters (HQ), Office of the Managing Director (OMD), Enterprise Acquisition Center (EAC) located at 45 L Street NE, Washington, DC 20554. The managing program is the Public Safety and Homeland Security Bureau (PSHSB).

2. Nature and/or description of the action being approved.

The FCC requires acquisition of WireScreen Full Intelligence Platform, a brand name solution, to enable advanced data analytics for identifying ownership, control, and influence of communications companies, equipment, and services by foreign adversarial nations. This is a new requirement under a Firm Fixed Price (FFP) task order. The acquisition will include a base year and four option years to ensure continuity of service.

To effectively manage risks to the U.S. communications sector and all dependent critical infrastructure sectors and resources, the FCC requires an integrated solution enabling FCC staff to analyze data from disparate sources and identify entities, equipment, and services that are potentially owned, controlled, or influenced by foreign adversarial countries.

The Secure and Trusted Communications Networks Act of 2021 directed the FCC to publish and update on its website a list of any communications equipment or service that poses an unacceptable risk to national security based on determinations made by executive branch interagency bodies, including the Federal Acquisition Security Council (FASC), the Department of Commerce pursuant to Executive Order No. 13873, or other national security agencies. Updating this list—particularly identifying subsidiaries and affiliates—requires access and analysis of official filings and public data from hundreds of thousands of sources in multiple formats.

3. A description of the supplies or services required to meet the agency's needs (including the estimated value).

Product: WireScreen Full Intelligence Platform

Description: WireScreen is a research database which provides access to data on China's defense, technological, and economic landscapes, and combines cultural nuance with the latest cutting edge software and data engineering to enable critical, actionable intelligence supporting national security decisions. WireScreen's unique data structure reveals China's business structures, economies, and supply chains, empowering analysts to effectively surface hidden relationships, track complex ownership structures, prioritize targets for investigation, and identify strategic linkages with China's defense sector and State-Owned Entities. WireScreen

offers a secure environment where user queries are not tracked and data is encrypted to ensure integrity.

The information WireScreen provides through its solution is unavailable through others and enables the FCC to identify and characterize relationships between China-based companies doing business (i.e., producing, selling, and providing equipment and services) in the United States, China’s government, or other international entities posing an unacceptable risk to national security.

Estimated Annual Value: [REDACTED]

Period of Performance: Base year + 4 option years

Estimated 5-Year Total: [REDACTED]

Item	Base	OY1	OY2	OY3	OY4	Total
Initial User (1 License)	[REDACTED]					
Additional Users (19 Lic.)						
Grand Total						

4. Exception to fair opportunity rationale and supporting rationale.

Selected Exception: FAR 16.505 — Only one brand name is capable of providing the supplies or services required at the level of quality required because the supplies or services ordered are unique or highly specialized.

Brand Name Justification: This acquisition is for WireScreen Full Intelligence Platform, a brand name product. Market research confirmed that no other solution meets FCC’s technical requirements for China-specific intelligence, secure data handling, and advanced analytics capabilities.

The WireScreen Full Intelligence Platform is a research database which provides access to data on China’s defense, technological, and economic landscapes, and combines cultural nuance with the latest cutting edge software and data engineering to enable critical, actionable intelligence supporting national security decisions. WireScreen’s unique data structure reveals China's business structures, economies, and supply chains, empowering analysts to effectively surface hidden relationships, track complex ownership structures, prioritize targets for investigation, and identify strategic linkages with China’s defense sector and State-Owned Entities. WireScreen offers a secure environment where user queries are not tracked and data is encrypted to ensure integrity.

WireScreen is a non-U.S. entity (NL), which makes it uniquely positioned to ingest this information as a intermediary through legal government and diplomatic ties. The information WireScreen provides through its solution is unavailable through others and enables the FCC to

identify and characterize relationships between China-based companies doing business (i.e., producing, selling, and providing equipment and services) in the United States, China's government, or other international entities posing an unacceptable risk to national security.

5. A determination by the Contracting Officer that the anticipated cost to the Government will be fair and reasonable.

The anticipated cost is fair and reasonable compared to similar solutions that are less capable and higher priced. The requested brand name provides the best value to the Government by satisfying all technical requirements with substantial cost savings. The order will be placed under the NASA SEWP GWAC, ensuring competition among authorized resellers. Basis for award will be Lowest Price Technically Acceptable (LPTA) and the task order will be Firm Fixed Price (FFP). Therefore, the price paid will represent the best value and result in the lowest overall cost alternative to meet FCC needs. The ordering activity has concluded that this approach ensures best value and fair pricing based on brand name competition under an established GWAC.

6. Any other facts supporting the justification.

The FCC assessed 17 potential solutions and determined that WireScreen offers unique China-specific intelligence capabilities. Key findings include:

1. Altana, Blue Yonder, CentralSight, Fusion Risk Management (Gartner), Hyperproof, Insight Software, and Palantir Foundry: Focused on internal enterprise supply chain; do not provide external ownership insights.
2. Exiger and Govini: Lack turnkey capabilities without significant integration; priced ~300% higher than FCC's budget.
3. Resilinc: Unable to meet several key technical requirements.
4. Bluevoyant (via Evince partnership): Provides useful data but lacks a functional dashboard for FCC personnel.
5. WireScreen: Provides unique China-specific intelligence, including supply chain, patents, and R&D initiatives; highly specialized and not publicly available elsewhere.
6. Thomson Reuters Clear: Excellent for U.S.-based business structures; limited coverage of non-U.S. entities.
7. Tangles: Focuses on dark-web and metadata; useful for personnel research but does not meet full FCC requirements.

Conclusion: WireScreen delivers unique, actionable intelligence critical for FCC's mission.

7. Actions to overcome barriers.

The FCC plans to leverage cost savings to explore complementary solutions (e.g., Datenna, CLEAR, Tangles) to close any remaining gaps in future acquisitions. To remove barriers to competition, the Public Safety and Homeland Security Bureau (PSHSB) has conducted extensive market research and will continue to do so in accordance with FAR Part 10 (Market Research). This includes:

- Reviewing required sources prescribed in FAR Part 8, such as mandatory sources of supply, GSA Federal Supply Schedules, and Governmentwide Acquisition Contracts (GWACs).
- Evaluating small business participation opportunities by utilizing NASA SEWP, which is a GWAC that promotes competition among small businesses.
- Checking for alternative solutions and substitutes to ensure that future acquisitions do not unnecessarily restrict competition.

While this acquisition specifies a brand name requirement, this is justified under FAR 11.104 (Use of Brand Name or Equal Purchase Descriptions) due to unique technical capabilities necessary to meet mission requirements. However, competition is still being conducted among multiple small business resellers on NASA SEWP, ensuring compliance with FAR Competition Requirements and maximizing opportunities for small business participation. Additionally, the agency will continue to monitor the marketplace for emerging technologies and vendors to reduce reliance on brand-specific solutions in future procurements. This proactive approach will help mitigate barriers and foster a more competitive environment.

8. Certifications.

Technical Representative/Contracting Officer Representative (COR) Certification:

I certify that the facts and representations under my cognizance, which are included in this justification and which form a basis for this justification, are complete and accurate.

Name/Title/Office:

Signature and Date

Contracting Officer

I certify that this ju

Name/Title/Office:

Signature and Date

Competition Advo

I have reviewed thi
knowledge and bel

Name/Title/Office:

Signature and Date